



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
DATE: 5-11-2026
BY: MA. JULINA B. JUTILO
SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 39TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON APRIL
28, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada SB Member
Hon. Harvey S. Manawatao SB Member
Hon. Tanie A. Quillano SB Member
Hon. Nilo S. Bigno SB Member
Hon. Rencio P. Valeroso SB Member
Hon. Elvie U. Ohao SB Member

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian ABC President
Hon. Jeff Anthony D. Beloria SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Daniel A. Tejol SB Member
Hon. Michael C. Escuyos SB Member

ORDINANCE NO. 48
Series of 2026

**“AN ORDINANCE PROHIBITING THE PHILIPPINE OFFSHORE GAMING OPERATORS (POGO) AND
OTHER ONLINE GAMBLING IN THE TERRITORIAL JURISDICTION OF THE MUNICIPALITY OF CARMEN,
PROVINCE OF SURIGAO DEL SUR PROVIDING PENALTIES FOR VIOLATION THEREOF AND FOR OTHER
PURPOSES”**

Author: Hon. Harvey S. Manawatao

Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, in July 2024 His Excellency, President Ferdinand R. Marcos Jr. announced the
complete banning on POGO nationwide citing concerns related to money laundering, immigration
bribery, illegal recruitment and human trafficking;

WHEREAS, the President of the Republic of the Philippines, His Excellency, President Ferdinand
R. Marcos Jr. further encouraged cities and municipalities to take cognizant and prompt action to ban
POGO’s within their respective jurisdiction;

WHEREAS, Philippine Offshore Gaming Operators (POGO) are often linked to various crimes including human trafficking, kidnapping, on line scams, robbery extortion, money laundering and drug related offenses;

WHEREAS, there are also issues such as prostitutions and the exploitation of vulnerable individuals associated with POGO operations;

WHEREAS, the presence of POGO requires significant resources from Local Government such as police and emergency services to address the associated crimes and social problems;

WHEREAS, POGO have been associated with international crime syndicates and have raised concerns about national security;

WHEREAS, despite the potential revenue, the economic benefits of POGO are sometimes outweighed by costs of addressing the social problems they create;

WHEREAS, some POGO operate without the necessary licenses and approvals making it difficult for local governments to monitor and regulate their activities and can lead to proliferation of illegal operations and the associated social and economic problems;

WHEREAS, the Local Government of Carmen, Surigao del Sur take a preemptive action to prevent the entry of POGO and other online gambling to avoid the potential negative impacts before they occur;

WHEREAS, the Local Government Unit of Carmen, Surigao del Sur headed by our Local Chief Executive, Hon. Mayor Nestor S. Valeroso, is in adherence to restrict and banning the operation of Philippine Offshore Gaming Operators (POGO) and other online gambling in the territorial jurisdiction of the Municipality of Carmen, Surigao del Sur;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

SECTION 1. SHORT TITLE- This Ordinance shall be known as the PHILIPPINE OFFSHORE GAMING OPERATORS (POGO) PROHIBITION ORDINANCE IN THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR.

SECTION 2. DECLARATION OF POLICY- It is hereby the policy of the Municipality of Carmen, Surigao del Sur to regulate and where necessary, restrict and ban the Philippine Offshore Gaming Operators (POGO) operations to protect the welfare of the constituents and maintain the peace and order.

SECTION 3. DEFINITION OF TERMS- For purposes of this Ordinance, the following terms shall be defined as follows.

1. Philippine Offshore Gaming Operators (POGO)- refers to an entity licensed by the Philippine Amusement and Gaming Corporation (PAGCOR) to offer online gambling services to customers outside the Philippines.
2. Service Provider- an entity providing technical, operational or support services to POGO.
3. Online Gambling- refers to games of chance conducted over the internet.

4. Restriction/Banning- is to officially or formally prohibit something or someone from being done. It's an authoritative restriction that makes an action, item or person illegal, unacceptable or off limits in a specific context.

SECTION 4. COVERAGE- This Ordinance shall apply to all POGO, other online gambling and their Service Providers intending to operate within the territorial jurisdiction of the Municipality of Carmen, Surigao del Sur.

SECTION 5. RESTRICTIONS- Zoning Restrictions. POGO and their Service Providers shall not be allowed to operate in the territorial Jurisdiction of this Municipality subject to existing Zoning Ordinance.

SECTION 6. PROHIBITIONS- The following acts are prohibited:

1. Operating a Philippine Offshore Gaming Operators (POGO) and other online games without a valid business permit from the Municipality of Carmen, Surigao del Sur.
2. Employing individuals without a proper work permits and clearances.
3. Engaging in activities that violate national and local laws including those related to cyber security, data privacy and anti-money laundering.
4. Prohibits the issuance of permits to entities conducting E-Games, E-Sabong, E-Bingo, Online Poker and Computer Gaming and Gambling Stations.
5. Providing technical support and assistance to POGO and other Online Gambling is also banned.

SECTION 7. PENALTIES FOR VIOLATION-

First Offense	-a fine of One Thousand Pesos (Php1,000.00) and confiscation of all gambling paraphernalia
Second Offense	-a fine of Two Thousand Pesos (Php2,000.00) and an imprisonment for a period of one (1) to three (3) months or both upon the discretion of the proper court including the confiscation of all gambling paraphernalia
Third and Subsequent Offenses	-a fine of Two Thousand Five Hundred Pesos (Php2,500.00) and an imprisonment of three (3) to six (6) months or both upon the discretion of the proper court including the confiscation of all gambling paraphernalia

SECTION 8. ENFORCEMENT- The Local Government Unit of Carmen, Surigao del Sur shall be responsible for the full implementation and enforcement of this Ordinance. They shall have the authority to conduct inspections, issue notices of violations and recommend the penalties for violation of this Ordinance.

SECTION 9. SEPARABILITY CLAUSE- If, for any reason, any section or provision of this Ordinance is declared unconstitutional or invalid, the other sections or provisions not affected thereby shall remain in full force and effect.

SECTION 10. REPEALING CLAUSE- All Ordinances, rules and regulations or part thereof inconsistent with the provisions of this Ordinance are hereby repealed or modified accordingly.

SECTION 11. EFFECTIVITY CLAUSE- This Ordinance shall take effect twenty- one (21) days after the posting in at least two (2) conspicuous places in this Municipality.

ENACTED this 28th day of April, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
5/11/2026